

THE SUPREME COURT OF PAKISTAN
(Review Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE ISHTIAQ IBRAHIM
Mr. JUSTICE MIANGUL HASSAN AURANGZEB

Criminal Review Petition No.5-L/2019 in Criminal Appeal No.104-L/2017
(Against the judgment dated 15.05.2019, passed by this Court in Criminal Appeal No.104-L of 2017).

Muhammad Bilal

...Petitioner(s)

VERSUS

The State etc

...Respondent(s)

For the Petitioner(s) : Rai Bashir Ahmed, ASC a/w
Mr. Atiq-ur-Rehman, AHC

For the complainant: Mr. Aftab Alam Yasir a/w complainant in
person

For the State : Rai Akhtar Hussain, Addl.PG

Assisted by : Ms. Tayyaba Munir, Law Clerk

Date of hearing: 02.04.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- Through the instant petition under Article 188 of the Constitution of Islamic Republic of Pakistan, 1973 read with Order-XXVI rule 01 of the Supreme Court Rules, 1980, Muhammad Bilal, the petitioner-convict, seeks review of the judgment dated 15.05.2019, passed by this Court in Criminal Appeal No.104-L of 2017, whereby his appeal was dismissed and his conviction under section 302(b) PPC read with section 7(a) of the Anti-Terrorism Act, 1997 and sentence of death on two counts, recorded by the two Courts below, were upheld.

2. Learned counsel for the petitioner-convict, while assailing the impugned judgment, *inter alia*, contended that according to the prosecution's own case, soon after the incident, the petitioner-convict was arrested at the spot by the police along with .30 bore

crime pistol; that three crime empties of the same bore were shown recovered from the crime spot and sent to the Punjab Forensic Science Agency (PFSA), Lahore, along with the alleged crime pistol, but as per the report of the PFSA, Lahore, only two empties marked as C.1 and C.2, were found to have been fired from the pistol shown recovered from the petitioner-convict while the third empty, marked as C.3, did not match with the said pistol; that as per postmortem report, and statement of Dr. Nasir Mehmood (PW.11), the deceased had sustained three firearm entrance wounds on different parts of his body, out of which entrance wounds No.1 and 3 have one and the same dimension of 1x1 cm while entrance wound No.2, have a dimension of 1.5 x1.5 cm; that the eyewitnesses have assigned the role of three effective fire shots on the person of the deceased to the petitioner-convict. He contended that the prosecution has failed to explain as to who caused the third firearm entrance wound on the person of the deceased and who was responsible for firing the third fire shot, empty of which did not match with the pistol of the petitioner-convict and these aspects of the case have been overlooked in the impugned judgment. He further contended that if the above aspect does not merit outright acquittal of the petitioner-convict, constitutes a significant and strong mitigating circumstance, warranting a reduction in the sentence of the petitioner-convict.

3. Apart from above, the learned counsel further contended that the conviction and sentence of the petitioner-convict under section 7(a) of the Anti-Terrorism Act, 1997, were set aside by this Court in the judgment under review; that at the time of the occurrence, the petitioner-convict was a young boy of about 20/21 years and was acting under the dominant influence of his father co-accused Manzoor Ahmad, who has since been acquitted; that the deceased was nominated in FIR No. 950/2010, registered under section 302, P.P.C. at Police Station Civil Lines, Gujrat, for murder of brother of the petitioner-convict and that on the fateful day the deceased had come to the Court premises in connection with his pre-arrest bail in the said case; that petitioner-convict is in continuous detention in the instant case for the last 14 years and in this way he has almost served out the sentence of life imprisonment. While concluding his

argument, learned counsel contended that these mitigating circumstances, when considered cumulatively along with the circumstances argued in Para No.2 above, warrant commutation of the death sentence of the petitioner-convict into imprisonment for life, which have escaped the notice of the Court while passing the judgment under review.

4. Conversely, the learned Additional Prosecutor General, Punjab, appearing on behalf of the State, while supporting the impugned judgment, contended that all the grounds now agitated in the instant review petition as well as in the arguments by the learned counsel for the petitioner-convict have already been thoroughly considered and adjudicated upon by this Court at the time of deciding the appeal. He submitted that the scope of review jurisdiction is extremely limited and does not permit a reappraisal of the evidence or a rehearing of the case on merits. Entertaining the present petition, in the manner sought by the learned counsel for the petitioner-convict, would amount to reopening and re-litigating issues that have already attained finality, which is not permissible under the law governing review, hence, sought dismissal of the petition.

5. We have heard the arguments and perused the record and the impugned judgment.

6. Before advertng to the grounds urged by the learned counsel for the petitioner-convict in support of the instant review petition, it would be advantageous to dilate upon the scope and extent of the review jurisdiction of this Court. Under Article 188 of the Constitution of the Islamic Republic of Pakistan, the Supreme Court is vested with the power to review any of its judgments, subject to the provisions of any Act of Majlis-e-Shoora (Parliament) and the rules made by the Supreme Court. Article 188 reads as under: -

Article 188. The Supreme Court shall have power, subject to the provisions of any Act of Majlis-e-Shoora (Parliament) and of any rules made by the Supreme Court, to review any judgment pronounced or any order made by it.

Part IV of Order XXVIII of the Supreme Court Rules, 2025, deals with the subject of review. Rule 1 thereof, being relevant for the present purposes, is reproduced hereunder: -

“Subject to the law and the practice of the Court, the Court may review its judgement or order in a civil proceeding on ground similar to those mentioned in Order XLVII, Rule 1 of the Code and in a criminal proceeding on the ground of an **error apparent on the face of the record.**”

The expression “error apparent on the face of the record” forms the cornerstone of this Court’s review jurisdiction in criminal proceedings. Though not expressly defined in the Rules, its meaning has been consistently shaped through judicial pronouncements, establishing that the power of review is narrow in scope, exceptional in nature, and discretionary in its exercise. It may be invoked only where a clear, manifest, and self-evident error is discernible from the record itself, or where interference is imperative to advance the ends of justice or to prevent abuse of the process of the Court. Such an error, whether of law or fact, must be obvious and material to the outcome, emerging plainly from the record without necessitating elaborate reasoning or reappraisal of evidence; it may arise, for instance, from the omission of a crucial point, misreading of the record, reliance on an erroneous assumption of a material fact, or disregard of a settled legal principle. In light of these settled principles, a criminal matter becomes amenable to review only when it is demonstrably evident from the record that a recognized ground exists and that it has materially influenced the decision. These grounds include a patent and self-evident error that cannot be allowed to stand, a material irregularity that transforms the judicial process into an instrument of injustice, a clear failure to consider an obvious and significant fact or established rule of law which would likely have altered the conclusion, a decision rendered in disregard of settled legal principles or in violation of constitutional guarantees, or a judgment given *per incuriam* due to a manifest misreading or misconception of the law or the record. Equally, it is firmly settled that such grounds must be substantiated by the record itself through clear, cogent, and unimpeachable material demonstrating a direct and substantial impact on the impugned judgment.

7. In the instant petition, the ground agitated by the learned counsel for the petitioner-convict in his arguments, when examined in the backdrop of the settled principles governing review jurisdiction of this Court, clearly brings the case within the ambit of review. The lapse pointed out by the learned counsel for the petitioner-convict in the prosecution's case is not merely a matter of reappraisal of evidence or a reiteration of previously considered arguments; rather, it relates to a patent inconsistency emerging from the record itself, having a direct and material bearing on the outcome of the case. It is evident from the record that, the petitioner-convict was arrested at the spot soon after the occurrence and the crime pistol was recovered from his possession there and then. Three crime empties were secured from the spot. The eyewitnesses in their statements have charged the petitioner petitioner-convict for three effective fire shots with .30 bore pistol on the person of the deceased. As per postmortem report, the deceased had sustained three firearm entrance wounds, two having one and the same dimension of 1x1 cm while one having 1.5 x 1.5 cm. The empties and the crime pistol were sent to the PFSA, Lahore, the report whereof shows that two empties were fired from the crime pistol shown recovered from the petitioner-convict, whereas the third empty remained unmatched with the same. The prosecution has failed to furnish any plausible or satisfactory explanation as to who caused the third entrance wound on the person of the deceased and who fired the third fire empty of which did not match with the pistol shown recovered from the petitioner-convict. This incongruity, when juxtaposed with the medical and ocular evidence, gives rise to a significant and unexplained gap in the prosecution case. It still remains shrouded in mystery as to who fired the third shot or caused the third firearm injury to the deceased. The above aspect constitutes a glaring omission in the judgment under review, inasmuch as a material piece of evidence having a direct bearing, if not on the fate of the entire case, at the most at the quantum of sentence. Such non-consideration in the judgment under review squarely falls within the category of an error apparent on the face of the record, as well as a patent failure to take into account an obvious and material aspect of the case, which, if considered, could have reasonably led to a different conclusion, at least with regard to the

sentence. In this view of the matter, the instant case clearly attracts the review jurisdiction of this Court in terms of the principles laid down in the judgments referred to hereinbefore. At the same time, it may be observed that the doubt so arising in the prosecution's case, is not of such a magnitude as to completely demolish the prosecution case or to warrant an outright acquittal of the petitioner-convict. However, it certainly constitutes a mitigating circumstance relevant to the quantum of sentence. In cases titled, *Mst. Bevi v. Ghulam Shabbir* (1980 SCMR 859), *Mawaz Khan v. Ghulam Shabbir* (NLR 1995 Cr. 17), *Mir Muhammad alias Miro v. The State* (2009 SCMR 1188), and *Falak Sher v. The State* (NLR 2000 Cr. 188), this Court has held that the doctrine of benefit of doubt is not confined to the determination of guilt alone but extends equally to the question of sentence, particularly in cases of murder under section 302 PPC where the choice lies between death and imprisonment for life. Where the prosecution fails to establish a definite motive, or where the circumstances of the case reveal inconsistencies, uncertainty regarding the true genesis of the occurrence, or mitigating factors short of creating reasonable doubt in guilt, the accused is entitled to extenuating benefit in the matter of punishment. In such situations, courts exercise caution, recognizing the irreversible nature of capital punishment, and prefer the lesser penalty of life imprisonment. Thus, even where conviction is maintained, the presence of doubtful or unclear aspects, such as a failed or suspect motive or non-fatal discrepancies in the prosecution case, justifies commutation of a death sentence to imprisonment for life as a matter of judicial prudence and to ensure that the ends of justice are met. Unfortunately, this important aspect escaped consideration in the judgment under review and, therefore, warrants interference to the limited extent of reappraisal of the sentence awarded to the petitioner-convict which is also the prayer in the review petition. Besides, at the time of occurrence the petitioner-convict was a young boy of 20 years and this can also be considered in aid of the above mitigating circumstance for the purpose of quantum of sentence.

8. The submissions of the learned counsel for the petitioner-convict referred in para-No.3 of this judgment, has also sufficient

weight. Admittedly, the conviction and sentence of the petitioner-convict under section 7(a) of the Anti-Terrorism Act, 1997, has already been set aside by this Court in the judgment under review. Record reflects that the deceased was nominated for murder of the petitioner-convict's brother. Father of the petitioner-convict, namely Manzoor Ahmad (since acquitted), was shown present on the spot at the time of occurrence, therefore, in such circumstances, the possibility that the petitioner-convict, who was then a young boy of about 20/21 years of age, acted under the dominating influence of his father/co-accused, cannot be excluded. It is also a matter of record that the petitioner-convict is in continuous detention since his arrest in the year 2011 till date, which period of incarceration, in the facts and circumstances of the case, substantially corresponds to the normal span of imprisonment for life. Section 302(b), P.P.C. provides for punishment of death or imprisonment for life as *ta'zir*. Article 13(a) of the Constitution of the Islamic Republic of Pakistan embodies the principle that no person shall be prosecuted or punished for the same offence more than once. If the period of 14 years continuous incarceration of the petitioner is taken into consideration, then if the sentence of death is maintained, it would render the prolonged detention of the petitioner preceding his execution, a factor of considerable harshness and against the concept of double jeopardy. The above aspects of the case have also escaped the notice of this Court while maintaining the death sentence of the petitioner-convict in the judgment under review. Taking into account the totality of circumstances discussed above, we are of the considered view that the case falls within the category of those in which the extreme penalty of death may not be warranted. The failure of this Court to advert to and evaluate the above crucial aspects constitutes an apparent error on the face of record, warranting interference in review jurisdiction. In case titled, *"Muhammad Musawar Rafiq and 2 others Vs the State through PG Punjab (2025 SCMR 1008)*, accused Muhammad Musawar Rafiq etc were convicted and sentenced by the Trial Court. The High Court maintained their conviction and sentence by dismissing their appeal. Similarly, this Court also dismissed the Criminal Petition of the accused-convicts. A review Petition was filed by the accused/convicts. The review was allowed as material

facts/evidence was were overlooked by this Court. This Court while exercising its review jurisdiction to prevent miscarriage of justice acquitted the convicts/review petitioners.

9. As regards the remaining grounds urged in the review petition and reiterated during the course of arguments by the learned counsel for the petitioner-convict, the same have already been dealt with exhaustively in the judgment under review, hence, any further deliberation thereupon would amount to reopening and re-agitating the case on merits, which is clearly beyond the scope of review jurisdiction.

10. For what has been discussed above, this petition is allowed. The impugned judgment of this Court dated 15.05.2019, passed in Criminal Appeal No. 104-L of 2017, is reviewed in the manner that the death sentence of the petitioner-convict on two counts is converted into rigorous imprisonment for life on two counts. Both the sentences shall run concurrently and benefit of Section 382-B Cr.P.C. is extended to him

Islamabad the
2nd April, 2026

Approved for Reporting

M. Siraj Afridi SPS/ Tayyaba Munir, Law Clerk